

HANNINK, et al. v. HERNANDEZ

Case No. 23CV46522

**PLAINTIFFS' MOTION TO COMPEL WRITTEN DISCOVERY
AND DEEMING MATTERS ADMITTED**

This action arises from an alleged breach of contract relating to three loans made to defendant.

On May 2, 2023, plaintiff propounded the following discovery on defendant: Form Interrogatories (Set One); Request for Production of Documents and Things (Set One); Special Interrogatories (Set One); and Requests for Admission (Set One). No response have been provided. The Motion to Compel was filed on August 18, 2023.

No opposition to the Motion to Compel was filed.

The Motion to Compel is GRANTED. Defendant, GILBERT HERNANDEZ is to produce complete verified answers, without objection, and produce all responsive documents in his care, custody or control, to Plaintiffs' Form Interrogatories (Set One), Request for Production (Set One), and Special Interrogatories (Set One), by November 3, 2023.

IT IS FURTHER ORDERED that all matters specified in the Requests for Admission (Set One) are deemed admitted and all documents referenced therein are deemed genuine.

As this motion was not opposed, no monetary sanctions are awarded.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiffs to submit a formal Order in conformity with this Ruling.